



CHAPTER xxxviii.

An Act to empower the South Metropolitan Gas Company to purchase lands and for other purposes.

A.D. 1905.

[30th June 1905.]

WHEREAS the South Metropolitan Gas Light and Coke Company (now known as the South Metropolitan Gas Company and in this Act referred to as "the Company") were incorporated by an Act passed in the year 1842 for more effectually lighting with gas certain places within the borough of Southwark and other parishes and places in the counties of Surrey and Kent :

And whereas under powers conferred upon them by various Acts relating to their undertaking the Company have acquired certain interests in the lands and premises in the parish and metropolitan borough of Camberwell hereinafter described but other interests in the said lands and premises (which adjoin the gasworks of the Company in the said parish and metropolitan borough and are required for purposes connected therewith and for the general purposes of the undertaking of the Company) are outstanding and it is expedient that the Company should be authorised to acquire such outstanding interests in order that they may be enabled to utilise the said lands for the said purposes :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans showing the lands which may be taken under the powers of this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of and describing such lands were

A.D. 1905. — duly deposited with the clerk of the peace for the county of London and are hereinafter respectively referred to as the deposited plans and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the South Metropolitan Gas Act 1905.

Incorporation of Acts. 2. The Lands Clauses Acts are hereby incorporated with and form part of this Act.

Power to Company to take lands. 3. Subject to the provisions of this Act the Company may for the general purposes of their undertaking purchase and acquire the lands hereinafter described which are shown on the deposited plans and described in the deposited book of reference (that is to say) :—

Lands in the parish and metropolitan borough of Camberwell comprising the houses and premises known as Nos. 1A 2A 3A 1 2 3 4 5 9 10 11 12 and 13 Alexander Street Old Kent Road and the curtilages thereof respectively.

The said lands shall not be used by the Company for the purpose of manufacturing gas or residual products or the storage of gas.

Period for compulsory purchase of lands by Company. 4. The powers of the Company for the compulsory purchase of lands under this Act shall not be exercised after the expiration of three years from the passing of this Act.

Application of London Building Acts. 5. The London Building Act 1894 and any Act amending the same and any byelaws made thereunder shall (subject to any special exemptions in favour of gas companies therein contained) apply to the construction or execution of any building structure or works by the Company on any lands in the administrative county of London acquired under the provisions of this Act :

Provided always that it shall not be lawful for the Company without the consent of the London County Council to erect or maintain any building beyond the general line of buildings in any street place or row of houses or to encroach upon any part of the surface of any street or footway in the said county or to erect any building or structure in such manner that any external wall thereof

[5 EDW. 7.] *South Metropolitan Gas Act*, 1905. [Ch. xxxviii.]

or the external fence or boundary of any forecourt or space in front thereof shall be within the distances hereinafter prescribed from the centre of the roadway of any street or way (being a highway) upon which the same will abut that is to say where such street or way is used for the purposes of carriage traffic twenty feet and where such street or way is used for the purposes of foot traffic only ten feet. A.D. 1905.

6. The exemption from liability to landlord's distress for rent conferred by section clix. of the Act 5 Victoria Sess. 2 c. lxxix. shall be deemed to extend to and include all gas engines apparatus fittings and appliances let by the Company on hire to their consumers : Extending
section clix.
of Act
5 Vict. Sess. 2
c. lxxix.

Provided that the Company shall only be entitled to exemption under this section in respect of any such engines apparatus fittings and appliances let by them on hire after the passing of this Act which shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

7. In the event of any meter used by a consumer of gas supplied by the Company being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. Period of
error in de-
fective meters
for measur-
ing gas sup-
plied by
Company.

8.—(1) All gas engines apparatus fittings and appliances let by the Company on hire shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company : Engines &c.
of Company
let on hire
though fixed
to premises
to remain
property of
Company.

Provided that such gas engines apparatus fittings and appliances have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

[Ch. xxxviii.] *South Metropolitan Gas Act, 1905.* [5 EDW. 7.]

A.D. 1905.

(2) Nothing in this section shall affect the amount of the assessment for rating of any premises upon which any such gas engines apparatus fittings and appliances are or shall be fixed.

Power to
Company to
sell and lease
lands.

9. The Company may sell and dispose of or may let on lease for such period as they may think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company may think fit And notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

Costs of Act.

10. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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